

# Court of Appeals of the State of Georgia

ATLANTA, June 16, 2025

*The Court of Appeals hereby passes the following order:*

## **A25A1932. JAMES UNDERWOOD v. THE STATE.**

Following a jury trial, James Underwood was convicted of aggravated battery and aggravated assault. Underwood filed a motion for a new trial, which the trial court denied on March 26, 2025. On May 1, 2025, Underwood filed a notice of appeal. We lack jurisdiction.

A notice of appeal must be filed within 30 days of entry of the judgment or trial court order sought to be appealed. OCGA § 5-6-38 (a). The proper and timely filing of a notice of appeal is an absolute requirement to confer jurisdiction on this Court. *Ebeling v. State*, 355 Ga. App. 469, 469 (844 SE2d 518) (2020). Underwood's notice of appeal was filed 36 days after entry of the trial court's order and is thus untimely. Consequently, we lack jurisdiction over this direct appeal, which is hereby DISMISSED.



*Court of Appeals of the State of Georgia*

*Clerk's Office, Atlanta, 06/16/2025*

*I certify that the above is a true extract from  
the minutes of the Court of Appeals of Georgia.*

*Witness my signature and the seal of said court  
hereto affixed the day and year last above written.*

*Christina Bailey Smith*

*, Clerk.*